Master Services Agreement

This Master Services Agreement (the "Agreement") is made with effect from May 23, 2025 (the "Effective Date")

BETWEEN:

(1) **Seabright Hotels & Resorts Inc**, a Delaware corporation, being a hotel group that owns and operates six hotels (the "Client"); and

(2) **Crestline Laundry & Linen Services Inc**, a Delaware corporation (the "Supplier").

1. Definitions and Interpretation

1.1 In this Agreement, the following terms have the following meanings:

1.1.1 "Charges" means the charges payable by the Client for the Services as set out in Schedule 2 – Charges;

1.1.2 "Confidential Information" means all information of a confidential nature disclosed by or on behalf of one party to the other in connection with this Agreement, including the terms of this Agreement, business, financial and operational information, and information relating to the Properties;

1.1.3 "Initial Term" means the period from the Effective Date until May 23, 2028, being 36 months;

1.1.4 "Properties" means the six hotels owned and operated by the Client at which the Services are delivered, as notified by the Client to the Supplier from time to time;

1.1.5 "Services" means the laundry and linen services described in Schedule 1 – Services; and

1.1.6 "Term" means the Initial Term together with any Renewal Period.

1.2 Headings are for convenience only and do not affect interpretation. References to clauses and Schedules are to clauses of and Schedules to this Agreement, and the Schedules form part of this Agreement.

2. Term and Renewal

2.1 This Agreement commences on the Effective Date and, unless terminated earlier in accordance with its terms, continues for the Initial Term.

2.2 On expiry of the Initial Term, this Agreement renews automatically for successive periods of 12 months (each a "Renewal Period") unless either party gives the other at least 90 days' written notice of non-renewal before the end of the then-current Initial Term or Renewal Period, in which case this Agreement expires at the end of that term.

3. The Services

3.1 The Supplier shall provide the Services to the Properties from the Effective Date in accordance with this Agreement and Schedule 1 – Services.

3.2 The Supplier shall perform the Services with reasonable skill and care, using suitably qualified and experienced personnel, and in accordance with applicable law and good industry practice.

3.3 The Supplier guarantees that all linen will be returned to the relevant Property within 48 hours of collection.

3.4 The Supplier shall maintain a food-safe and infection-control laundering process throughout the Term and shall provide the Client with an annual compliance audit report.

3.5 The Client shall give the Supplier such access to the Properties and such information as the Supplier reasonably requires to perform the Services.

3.6 Either party may propose changes to the Services. No change is effective unless agreed in writing and signed by both parties.

4. Charges and Payment

4.1 The Client shall pay the Charges in accordance with Schedule 2 – Charges. The Supplier shall invoice the Client (or, if agreed, the relevant Property) in respect of the Services performed.

4.2 The Client shall pay each undisputed invoice within 45 days of receipt of a valid invoice. A valid invoice must identify the relevant Property, the Services provided and the Charges claimed.

4.3 If the Client disputes any invoice in good faith, it shall notify the Supplier promptly, pay any undisputed portion in accordance with clause 4.2, and the parties shall seek to resolve the dispute promptly and in good faith.

4.4 Unless otherwise stated in Schedule 2 – Charges, the Charges are exclusive of sales tax, which shall be payable in addition on receipt of a valid invoice.

5. Confidentiality

5.1 Each party shall keep the other's Confidential Information confidential, use it only to perform or receive the benefit of this Agreement, and not disclose it except as permitted by this clause 5.

5.2 A party may disclose Confidential Information:

5.2.1 to its employees, officers, professional advisers, insurers and subcontractors who need to know it and who are bound by equivalent obligations of confidence; and

5.2.2 to the extent required by law, court order or a competent regulatory authority.

5.3 Clause 5.1 does not apply to information that is or becomes public other than through breach of this Agreement, was lawfully known to the recipient before disclosure, or is independently developed by the recipient.

5.4 The obligations in this clause 5 survive for 3 years after this Agreement ends.

6. Data Protection

6.1 The parties acknowledge that the Services do not involve the processing of personal data by the Supplier on behalf of the Client.

6.2 If the parties subsequently agree that personal data will be processed, they shall first agree in writing appropriate terms complying with applicable data protection law.

7. Intellectual Property

7.1 Each party retains ownership of its pre-existing intellectual property rights.

7.2 The Client's brand names, logos, and any branded or marked linen remain the property of the Client or its licensors. The Client grants the Supplier a non-exclusive, non-transferable license during the Term to use them solely to provide the Services.

7.3 The Supplier shall not use the Client's names or marks for any publicity or marketing purpose without the Client's prior written consent.

8. Warranties

8.1 The Supplier warrants that the Services will be performed in accordance with clause 3 and Schedule 1 – Services.

8.2 Each party warrants that it has full power and authority to enter into and perform this Agreement.

8.3 No express warranty period applies. The warranty in clause 8.1 is a services warranty only, and, to the extent permitted by law, all other warranties, conditions and terms implied by statute or otherwise are excluded.

9. Insurance

9.1 The Supplier shall maintain throughout the Term, with a reputable insurer, insurance cover of at least USD 5,000,000 per claim, including public and products liability insurance appropriate to the Services.

9.2 The Supplier shall provide evidence of that cover to the Client on reasonable request.

10. Indemnity

10.1 The Supplier shall indemnify the Client against all losses, damages, costs and expenses (including reasonable legal fees) arising from any third-party claim that the Services, or the Client's receipt of them in accordance with this Agreement, infringe that third party's

intellectual property rights, or arising from the Supplier's negligence causing death, personal injury or damage to tangible property.

10.2 The Client shall give the Supplier prompt notice of any claim, allow the Supplier to conduct its defense and settlement (provided that no settlement imposes liability on the Client without its consent, not to be unreasonably withheld), and give reasonable assistance at the Supplier's cost.

11. Limitation of Liability

11.1 Nothing in this Agreement limits or excludes either party's liability for death or personal injury caused by negligence, fraud or fraudulent misrepresentation, or any other liability that cannot lawfully be limited or excluded.

11.2 Subject to clause 11.1, each party's aggregate liability to the other arising under or in connection with this Agreement, whether in contract, tort (including negligence), breach of statutory duty or otherwise, is limited to one (1) times the fees paid or payable in the twelve (12) months preceding the claim.

11.3 Subject to clause 11.1, neither party is liable to the other for any indirect or consequential loss, or for loss of profit, revenue or goodwill, in each case arising under or in connection with this Agreement.

12. Termination

12.1 The Client may terminate this Agreement without cause by giving the Supplier 60 days' written notice.

12.2 Either party may terminate this Agreement with immediate effect by written notice if the other:

12.2.1 commits a material breach that is irremediable or, if remediable, is not remedied within a reasonable period after written notice requiring remedy; or

12.2.2 becomes insolvent, enters administration, liquidation or any arrangement with its creditors, or ceases to carry on business.

12.3 On termination or expiry, the Supplier shall promptly return all Client linen and property, and the Client shall pay all undisputed Charges for Services performed up to the date of termination.

12.4 Termination or expiry does not affect accrued rights and remedies. Clauses 5, 11, 14 and this clause 12.4 survive termination or expiry, together with any other provision intended to do so.

12.5 If a Property is sold or the Client ceases to own or operate it, the Client may terminate the Services at that Property on 30 days' written notice without liability for any early-termination charge.

13. Assignment and Subcontracting

13.1 Neither party may assign, transfer or subcontract any of its rights or obligations under this Agreement without the other's prior written consent, not to be unreasonably withheld.

13.2 The Supplier remains responsible for the acts and omissions of its subcontractors as if they were its own.

14. Governing Law and Jurisdiction

14.1 This Agreement and any dispute or claim arising out of or in connection with it (including non-contractual disputes or claims) are governed by the laws of the State of New York.

14.2 the state and federal courts located in New York County, New York have exclusive jurisdiction to settle any such dispute or claim.

15. Notices

15.1 Notices under this Agreement must be in writing and delivered by hand, by pre-paid first-class post or by recognized courier to the registered office of the receiving party (or another address notified in writing), marked for the attention of its company secretary.

15.2 A notice is deemed received on delivery if delivered by hand or courier, and on the second business day after posting if sent by first-class post.

16. General

16.1 Entire agreement: This Agreement, with its Schedules, constitutes the entire agreement between the parties relating to its subject matter and supersedes all prior agreements, understandings and representations. Each party acknowledges that it has not relied on any statement not set out in this Agreement.

16.2 Variation: No variation of this Agreement is effective unless in writing and signed by authorized representatives of both parties.

16.3 Waiver: A failure or delay in exercising a right is not a waiver of it.

16.4 Severance: If any provision is held invalid or unenforceable, the remainder is unaffected.

16.5 Force majeure: Neither party is liable for delay or failure to perform caused by events beyond its reasonable control, provided it notifies the other promptly and uses reasonable endeavours to mitigate the effect.

16.6 Third party rights: No person other than the parties has any right to enforce any term of this Agreement under the Contracts (Rights of Third Parties) Act 1999.

16.7 Counterparts: This Agreement may be executed in counterparts, each of which is an original and all of which together constitute one agreement.

Schedule 1 – Services

Item	Description
Scope	Collection, laundering, finishing and return of linen, towels, uniforms and related textiles from each Property.
Collection and delivery	Scheduled collections and deliveries at each Property as agreed between the Supplier and the relevant Property.
Turnaround	Linen returned within 48 hours of collection, as guaranteed in clause 3.3.
Process standards	A food-safe and infection-control laundering process maintained in accordance with clause 3.4.
Reporting	An annual compliance audit report delivered to the Client in accordance with clause 3.4.
Handling	Care of items in line with garment care labels and the Client's reasonable written instructions, with reporting of damaged or lost items.

Schedule 2 – Charges

Item	Basis of Charge
Laundry and linen services	Charged per item processed, or per kilogram, as set out in the rate card agreed in writing between the parties and signed by both parties.
Invoicing	Issued after delivery of the Services and itemised by Property.
Payment	Undisputed invoices payable within 45 days of receipt of a valid invoice, in accordance with clause 4.2.
Taxes	Exclusive of sales tax, which is payable in addition where applicable.

Signatures

Signed for and on behalf of **Seabright Hotels & Resorts Inc** by Helena Cruz, VP Technology Sourcing

Signature: _____

Date: May 13, 2025

Signed for and on behalf of **Crestline Laundry & Linen Services Inc** by Grace Mbeki, Authorized Signatory

Signature: _____

Date: May 16, 2025